MEMORANDUM OF UNDERSTANDING

This Memorandum of Understanding ("**MOU**") is entered into as of 2nd of November 2020 (the "**Effective Date**")

BETWEEN:

Seagull Maritime Limited, a company incorporated under the laws of Malta, with its registered office at 64 Excalibur B.Bontadini str., Birkirkara, Malta BKR1737("**Seagull Malta**");

AND

Seagull Logistics and Maritime Services Ltd, a company incorporated under the laws of the Federal Republic of Nigeria (RC No. 1721990), with its registered office at 29A ARAROMI STREET, LAGOS ISLAND, LAGOS, LAGOS ISLAND, LAGOS STATE, Lagos, Nigeria ("**Seagull Nigeria**").

Seagull Malta and Seagull Nigeria are hereinafter referred to individually as a "**Party**" and together as the "**Parties**".

1. PURPOSE AND BACKGROUND

1.1 The Parties are affiliated companies within the wider Seagull group of companies and operate in complementary jurisdictions.

1.2 Seagull Malta provides maritime security, logistics, risk management, and related services to international clients, including clients requiring services in Nigerian territorial waters, ports, terminals, offshore installations, and related maritime zones.

1.3 Seagull Nigeria is a Nigerian-incorporated company duly licensed and authorised under applicable Nigerian laws and regulations to provide maritime security, logistics, marine services, and related support services within Nigeria.

1.4 The purpose of this MOU is to establish a framework under which Seagull Nigeria shall support Seagull Malta by providing services in Nigeria, and to ensure continuity and availability of Nigerian-based services for Seagull Malta's clients.

2. SCOPE OF SERVICES

2.1 Subject to applicable law and regulatory approvals, Seagull Nigeria shall, upon request by Seagull Malta, provide the following services within Nigeria (the "Services"):

(a) maritime security services, including vessel escort, port and terminal security support, and

offshore security support; (b) marine logistics and vessel-related support services; (c) liaison with Nigerian authorities, port authorities, regulators, and local stakeholders; (d) provision of locally compliant personnel, assets, vessels, and equipment; (e) emergency response, standby, and contingency support; (f) any other services agreed in writing between the Parties from time to time.

2.2 The Services shall be provided strictly in accordance with Nigerian law, applicable licences, and regulatory requirements.

3. OPERATIONAL ARRANGEMENTS

3.1 Each specific engagement shall be governed by a separate written service order, tasking note, or back-to-back agreement, which shall define scope, duration, commercial terms, liabilities, and operational parameters.

3.2 Unless otherwise agreed in writing, Seagull Nigeria shall act as the locally executing party in Nigeria, while Seagull Malta shall retain overall client interface and commercial responsibility vis-à-vis its clients.

3.3 Nothing in this MOU shall be construed as creating a partnership, joint venture, or agency relationship between the Parties.

4. CONTINUITY OF NIGERIAN SERVICES

4.1 The Parties expressly acknowledge that uninterrupted access to Nigerian-compliant services is fundamental to Seagull Malta's business and client commitments.

4.2 Seagull Nigeria undertakes to use all reasonable endeavours to ensure the continuous availability of the Services to Seagull Malta throughout the term of this MOU, subject always to compliance with Nigerian law and regulatory requirements.

4.3 In the event of: (a) changes in ownership, management, or control of Seagull Nigeria; (b) suspension, non-renewal, or amendment of any licence or permit held by Seagull Nigeria; (c) regulatory, legal, or political developments affecting the provision of the Services; or (d) any other circumstance that may reasonably impact the continuity of the Services,

Seagull Nigeria shall promptly notify Seagull Malta and cooperate in good faith to implement

alternative lawful arrangements to ensure that Seagull Malta continues to have access to equivalent services in Nigeria without material interruption.

4.4 Such alternative arrangements may include, where lawful and feasible: (a) subcontracting or delegation to other Nigerian-licensed entities acceptable to Seagull Malta; (b) transitional support pending restructuring, re-licensing, or replacement arrangements; or (c) any other mechanism permitted under Nigerian law that preserves service continuity.

5. FINANCIAL OVERSIGHT AND CONTROL

5.1 The Parties acknowledge and agree that, for the purposes of group governance, risk management, transparency, and client assurance, all material financial matters of Seagull Nigeria relating to the Services provided under this MOU shall be subject to oversight, monitoring, and approval by Seagull Malta.

5.2 Without prejudice to Seagull Nigeria's statutory obligations under Nigerian law, this shall include, to the extent legally permissible: (a) review and approval by Seagull Malta of budgets, pricing, and cost structures relating to the Services; (b) visibility and reporting of all income, expenditure, cash flows, and profit and loss relating to the Services; (c) monitoring of payments received from, and payments made in connection with, Seagull Malta client engagements; (d) alignment of financial controls, reporting standards, and audit trails with Seagull Malta group policies.

5.3 The Parties acknowledge that this Clause is intended to evidence group-level financial control and does not constitute an unlawful assignment of revenue, circumvention of Nigerian tax obligations, or breach of any applicable local law.

6. REGULATORY COMPLIANCE

5.1 Each Party shall comply with all applicable laws, regulations, licences, and regulatory conditions in its respective jurisdiction.

5.2 Seagull Nigeria shall remain solely responsible for compliance with Nigerian local content, licensing, security, tax, and employment laws in respect of the Services.

6. REMEDIES FOR FAILURE OF CONTINUITY

6.1 The Parties agree that the continuity obligations set out in Clause 4 are material and fundamental to this MOU.

6.2 If Seagull Nigeria, without lawful excuse, fails to provide the agreed Services, or otherwise fails to comply with the continuity obligations under Clause 4, and such failure is not remedied within a reasonable cure period not exceeding thirty (30) days following written notice from Seagull Malta, Seagull Nigeria shall be liable to Seagull Malta for liquidated damages.

6.3 The Parties agree that such liquidated damages shall be a genuine pre-estimate of loss and shall be calculated as one or more of the following, as elected by Seagull Malta in its discretion: (a) reimbursement of all direct costs incurred by Seagull Malta in securing alternative Nigerian-compliant service providers; (b) indemnification for demonstrable client penalties, loss of revenue, or contractual exposure suffered by Seagull Malta as a result of the failure; and/or (c) a fixed penalty equal to 90% of the gross revenues attributable to the affected Services over the preceding twelve (12) months.

6.4 The remedies set out in this Clause are without prejudice to any other rights or remedies available to Seagull Malta at law or in equity.

7. CONFIDENTIALITY

6.1 Each Party shall keep confidential all non-public information relating to the other Party, its clients, operations, pricing, and business arrangements, except as required by law or regulatory authority.

7. TERM AND TERMINATION

7.1 This MOU shall commence on the Effective Date and shall remain in force for an initial term of twenty (20) years, unless terminated earlier in accordance with this Clause.

7.2 Either Party may terminate this MOU upon not less than ninety (90) days' written notice to the other Party.

7.3 Termination of this MOU shall not affect: (a) any ongoing services already commenced; (b) accrued rights and obligations; or (c) the continuity obligations set out in Clause 4, which shall

survive termination to the extent necessary to ensure orderly transition.

8. LIMITATION OF LIABILITY

8.1 This MOU is a framework agreement and does not, of itself, create financial liability between the Parties, save as expressly agreed in any subsequent service order or agreement.

9. GOVERNING LAW AND DISPUTE RESOLUTION

9.1 This MOU shall be governed by and construed in accordance with the laws of England and Wales.

9.2 Any dispute arising out of or in connection with this MOU shall be finally resolved by arbitration in London under the LMAA Terms in force at the time the dispute arises.

10. NON-BINDING STATUS

10.1 This MOU records the Parties' mutual understanding and intent and is non-binding, save for Clauses 4 (Continuity), 6 (Confidentiality), 7.3 (Survival), and 9 (Governing Law and Dispute Resolution), which shall be legally binding.

11. MISCELLANEOUS

11.1 This MOU may be executed in counterparts.

11.2 Amendments must be in writing and signed by both Parties.

For and on behalf of Seagull Maritime Limited (Malta)

Name: Pavel Shparber

Title: CEO

Date:2/11/2020

Signature:

For and on behalf of Seagull Logistics and Maritime Services Ltd (Nigeria)

Name: Habeeb Oredola

Title:Director

Date:2/11/2020

Signature: